Intellectual Property Rights

Part A (2 Marks)

Q1. A dairy brand registers a distinctive cow-head symbol (without any words) to identify its milk packets in the market. **Classify the type of trademark represented in this case.**

Answer: This is a **device mark** (also called a logo mark). It uses only a picture or symbol, with no words, to identify the brand's goods.

Q2. A researcher develops a new, non-obvious and industrially useful method of purifying river water. **Name the three criteria for patent protection that are satisfied in this case.**

Answer: The three criteria are:

- **Novelty** (the method is new)
- **Inventive step** (it is non-obvious)
- **Industrial applicability** (it can be made or used in industry)

Q3. A startup files a provisional application for a drone design but does not submit the complete specification within the prescribed time. **State the consequence of such a delay.**

Answer: The complete specification must be filed within **12 months** of the provisional application. If it is not, the application is treated as **abandoned** (Section 9) and the startup loses its early filing date.

Q4. A local café puts a name nearly identical to a famous coffee chain's registered trademark on its menu boards to attract customers. **Identify the legal issue involved in this case.**

Answer: The legal issue is **trademark infringement** (Section 29, Trade Marks Act, 1999). The café is using a deceptively similar mark without permission, which can confuse customers.

Q5. An inventor files a preliminary application describing the concept of a solar-powered irrigation pump to secure an early filing date, and plans to complete the details later. **Classify the type of patent application used.**

Answer: This is a **provisional application**. It is filed with a provisional specification to secure an early priority date, and the complete specification follows within 12 months.

Q6. A footwear company registers its brand name as a trademark and wants to keep the registration alive for many years. **State the initial term of a registered trademark in India and the period for which it can be renewed.**

Answer: The initial term is **10 years**. It can be renewed for **10 years at a time, any number of times**, so protection can last indefinitely (Section 25).

Q7. An inventor obtains a patent for a new type of wind-turbine blade in India. **State the term of protection of a patent in India, counted from the date of filing.**

Answer: The term of a patent in India is **20 years from the date of filing** (Section 53), provided renewal fees are paid on time.

Q8. A juice company applies to register the plain words "Fresh Juice" as a trademark for fruit juices. **Identify the ground on which the registration is likely to be refused.**

Answer: It will likely be refused because the words are **descriptive and not distinctive**. This is an **absolute ground** of refusal under Section 9, since the words only describe the product.

Q9. A pharmaceutical company learns that a competitor's patent application has been published but not yet granted, and wishes to object to its grant. **Name the type of opposition available to the company.**

Answer: The company can file a **pre-grant opposition** under Section 25(1). It can be filed after publication and before the patent is granted.

Q10. The government allows a manufacturer to produce a life-saving patented drug because the patentee has not met public demand at a reasonable price. **Name the legal provision under which this is permitted.**

Answer: This is permitted under **compulsory licensing**, Section 84 of the Patents Act, 1970.

Part B (5 Marks)

Q11. An e-bike startup develops a new electric bicycle, registers a brand name and logo for it, and protects its battery-swapping mechanism. **Illustrate the relevant intellectual property rights (trademark and patent) to this scenario with examples.**

Answer: Two main intellectual property rights apply here.

1. Trademark (brand name and logo)

- A trademark protects the name or sign that identifies a business's goods.
- The startup's brand name is a word mark and its logo is a device mark.
- Example: others cannot sell e-bikes under a similar name or logo.
- Protection lasts 10 years and can be renewed again and again.

2. Patent (battery-swapping mechanism)

- A patent protects a new technical invention.
- The mechanism qualifies if it is new, inventive and industrially applicable.
- Example: no competitor can make or sell the same mechanism without permission.
- Protection lasts 20 years from the filing date.

Conclusion: The patent protects the technology, and the trademark protects the brand identity. Together they give the startup full protection.

Q12. A tea company wants to register a new brand name but the Registry rejects the application because of its similarity to an existing brand. **Explain and justify the criteria used for evaluating trademarks and the reasons for rejection.**

Answer:

Criteria for a valid trademark

- It must be **distinctive**, so that it separates one brand from others.
- It must be capable of **graphical representation**.
- It must not be merely descriptive of the goods.
- It must not be deceptive or similar to an existing mark.

Reasons for rejection

- **Absolute grounds (Section 9):** the mark itself is defective. It is not distinctive, only descriptive, a common term, deceptive, or offensive.

- **Relative grounds (Section 11):** the mark conflicts with an earlier mark. It is identical or similar to it, covers the same or similar goods, and may confuse the public.

Justification in this case

The tea company's application falls under **Section 11**. Both brands sell tea, so buyers may think they come from the same company. Rejection protects both the earlier owner and the public.

Q13. An inventor of a new wind-turbine blade conducts a prior art search before filing a patent application. **Explain and demonstrate the importance of a prior art search in determining patentability.**

Answer: Prior art means everything already known to the public before the filing date, such as earlier patents, papers, books and products. A prior art search checks whether the invention already exists.

Importance

- **Tests novelty:** if the same blade is already disclosed, the invention is not new.
- **Tests inventive step:** it shows whether the blade would be obvious from what is known.
- **Saves time and money:** the inventor avoids filing a weak application.
- **Improves drafting:** claims can be written around what already exists.
- **Reduces risk:** it lowers the chance of objection, opposition or revocation, and helps avoid infringing others.

Demonstration

The inventor searches databases such as InPASS (Indian Patent Office), Espacenet and Google Patents. If an earlier patent shows the same blade shape, he must change the design or drop the filing. If nothing similar is found, he can file with confidence.

Q14. Two firms claim rights over similar battery-cooling inventions, leading to a legal dispute. **Analyze how patent infringement is determined in such cases.**

Answer: Patent infringement means making, using, selling or importing a patented invention without permission during the patent term. A court generally follows these steps:

- **Step 1, check the patent:** the patent must be granted and still in force. Rights are enforced only after grant.
- **Step 2, read the claims:** the claims set the boundary of protection, so the court works out what they cover.
- **Step 3, compare the products:** the accused cooling system is compared with the claims, feature by feature.
- **Step 4, literal infringement:** this exists if the accused product has every element of the claim.
- **Step 5, doctrine of equivalents:** small changes do not avoid infringement if the product does the same work in substantially the same way with the same result (pith and marrow).
- **Step 6, check defences:** the accused firm may argue that the patent is invalid (Sections 64 and 107), or that it used the invention before the priority date.

Conclusion: Priority dates decide who came first, and the claims decide whether infringement exists.

Q15. A patent holder licenses his water-filtration invention to a manufacturing firm in return for royalty. **Illustrate and explain the rights and responsibilities of patentees in such agreements.**

Answer: A **licence** is permission to use a patent. The patent holder stays the owner and earns royalty, which is payment for that use.

Rights of the patentee

- Exclusive right to make, use, sell or import the invention (Section 48).
- Right to grant licences, and to assign the patent (Section 68).
- Right to receive royalty, for example a percentage of each filter sold.
- Right to sue infringers and to end the licence if its terms are broken.

Responsibilities of the patentee

- Pay renewal fees to keep the patent alive.
- Put the licence in writing and register it with the Patent Office (Sections 68 and 69).
- Give the technical help and information promised in the agreement.
- File the working statement (Form 27) once every three financial years.
- Avoid unfair conditions, such as forcing the firm to buy unrelated goods (Section 140).

Illustration: the firm makes the filters and pays royalty. The inventor earns income without running a factory.

Q16. An inventor in Bengaluru has developed a smart helmet that detects accidents and alerts emergency contacts, and now wishes to patent it in India. **Explain the step-by-step procedure for patent registration in India, from filing to grant.**

Answer:

- **Step 1, prior art search:** check that the helmet is new and inventive.
- **Step 2, prepare the specification:** draft a provisional or complete specification with claims.
- **Step 3, file the application:** file with the Indian Patent Office using Form 1 (application), Form 2 (specification), Form 3 (foreign filing details) and Form 5 (declaration of inventorship). Karnataka applications come under the Chennai office.
- **Step 4, complete specification:** if a provisional was filed, file the complete specification within 12 months.
- **Step 5, publication:** the application is published after 18 months. Early publication can be requested using Form 9.
- **Step 6, request for examination:** file Form 18 within 31 months of the priority date.
- **Step 7, examination:** the examiner issues a First Examination Report (FER) listing objections.
- **Step 8, reply to objections:** reply within 6 months (extendable by 3 months). A hearing may follow.
- **Step 9, opposition:** anyone may file a pre-grant opposition after publication and before grant.
- **Step 10, grant:** if all requirements are met, the patent is granted. It lasts 20 years from filing, subject to renewal fees.

Q17. A fashion start-up plans to protect its brand using a word mark, a logo, a distinctive colour combination and a jingle. **Explain the different types of trademarks with suitable examples.**

Answer: A trademark is any sign that identifies the goods or services of a business. The main types are:

- **Word mark:** a name or word in text form. Example: NIKE.

- **Device mark (logo):** a symbol or picture. Example: the Nike swoosh.
- **Colour mark:** a distinctive colour combination. Example: the purple Cadbury wrapper.
- **Sound mark:** a sound or jingle linked to a brand. Example: the Yahoo yodel, or the ICICI Bank jingle.
- **Shape mark:** the distinctive shape of goods or packaging. Example: the Coca-Cola bottle.
- **Service mark:** identifies services, not goods. Example: the name of an airline or bank.
- **Collective mark:** used by members of an association. Example: CA (Chartered Accountants).
- **Certification mark:** certifies quality or standards. Example: ISI, Agmark.

Application: the start-up can register its brand name as a word mark, its logo as a device mark, its colours as a colour mark and its jingle as a sound mark.

Q18. A clothing brand wants to secure a trademark registration for its new label. **Explain the procedure for trademark registration in India, from search to registration.**

Answer:

- **Step 1, trademark search:** search the Trade Marks Registry database to check that no similar mark exists.
- **Step 2, choose the class:** goods and services are divided into 45 classes. Clothing falls in Class 25.
- **Step 3, file the application:** file Form TM-A with the Registrar, with the fee, online or at the office (Section 18).
- **Step 4, examination:** the examiner checks the application and issues a report on any objections under Sections 9 and 11.
- **Step 5, reply to objections:** reply within 1 month. A hearing may be held.
- **Step 6, publication:** if accepted, the mark is published in the Trade Marks Journal.
- **Step 7, opposition:** anyone may oppose within 4 months of publication (Section 21). Both sides give evidence and the Registrar decides.
- **Step 8, registration:** if there is no opposition, or it fails, the mark is registered and a certificate is issued (Section 23).
- **Step 9, renewal:** registration is valid for 10 years and can be renewed every 10 years.

Q19. A student files a provisional specification for a robotic lawn-mower and later has to prepare the complete specification. **Distinguish between a provisional and a complete specification and explain the importance of claims.**

Answer:

Basis	Provisional specification	Complete specification
Meaning	Early description of the invention	Full and final description
Purpose	Secures an early priority date	Supports the grant of a patent
Detail	General idea is enough	Full detail and best method required
Claims	Not required	Compulsory
Timing	Filed first, and is optional	Filed within 12 months of the provisional
Grant	No patent from this alone	Patent is granted on this

Importance of claims

Claims are the numbered statements at the end of the complete specification. They are important because:

- They define the **legal scope** of the patent, that is, what is protected.
- Infringement is judged by comparing the product with the claims.
- Examiners test novelty and inventive step against the claims.
- Unclear claims can lead to objection or revocation, and clear claims are stronger.

Q20. A small soap manufacturer sells its product in packaging deceptively similar to that of a well-known brand that is not registered, while another firm copies the registered mark of a different brand. **Distinguish between trademark infringement and passing off, and explain the remedies available.**

Answer:

Basis	**Infringement**	**Passing off**
Mark	Registered mark	Unregistered mark
Nature of right	Statutory right	Common law right
Law	Section 29, Trade Marks Act	Section 27(2), common law
Must prove	Registration, and use of a same or similar mark	Goodwill, misrepresentation and damage
Scenario	Firm copying the registered mark	Soap maker copying the packaging

Remedies available

- **Civil remedies (Section 135):** both actions allow an injunction to stop the use, damages or an account of profits, and delivery up or destruction of the infringing goods.
- **Interim relief:** courts can give a temporary injunction during the case.
- **Criminal remedies:** falsifying a trademark is punishable under Sections 103 and 104 with imprisonment of 6 months to 3 years and a fine.
- **Where to sue:** suits are filed in a District Court or higher court (Section 134).

Part C (10 Marks)

Q21. A startup develops an automated seed-sorting machine, files a patent for it, and markets it under a registered brand name. **(a) Analyze the different intellectual property protections involved. (b) Justify which form of IP gives the startup the strongest competitive edge, with reasoning.**

Answer:

(a) Intellectual property protections involved

1. Patent: protects the seed-sorting machine as a technical invention. It must be new, inventive and industrially applicable. It gives the exclusive right to make, use, sell and import the machine for 20 years from filing. While the application is pending, it gives an early filing date. Rights can be enforced after grant.

2. Trademark: protects the registered brand name. It stops others using a same or similar name for such goods. It lasts 10 years and can be renewed forever. It builds customer trust and goodwill.

3. Trade secret: protects confidential know-how not disclosed in the patent, such as tuning methods or supplier lists. It lasts as long as the information stays secret.

4. Industrial design: protects the look of the machine, such as its shape, if it is new and original. It lasts up to 15 years.

5. Copyright: protects the machine's manuals, software code and marketing material automatically.

(b) Strongest competitive edge: the patent

The patent gives the strongest competitive edge at this stage, for these reasons:

- **It blocks copying:** it is the only right here that stops others from using the same technology, even if they sell it under another name.
- **It is a real monopoly:** for up to 20 years, competitors must license it or design around it.
- **It earns income:** the startup can sell it or license it for royalty.
- **It attracts investors:** a patent shows that the core technology is protected.

A trademark alone cannot stop a competitor from selling the same machine under a different name, so it protects the brand, not the technology.

Conclusion: The patent gives the strongest edge in the short and medium term. The trademark gives the longest protection, because it continues after the patent expires. The best strategy is to use both together.

Q22. An inventor files a patent for a robotic arm with incomplete claims and an unclear technical description. **Critically evaluate the impact of poor patent drafting on the protection and commercialization of an invention.**

Answer: Introduction: a patent specification is the legal document that describes an invention, and its claims define what is protected. Under Section 10, it must fully describe the invention, give the best method of working it, and include clear and concise claims. Poor drafting harms both protection and business value.

Impact on protection

- **Narrow scope:** incomplete claims leave parts of the robotic arm unprotected, so competitors can copy those parts freely.
- **Objections:** unclear claims lead to objections in the examination report, causing delay and higher cost.
- **Refusal:** if defects are not fixed, the application may be refused.
- **Limited correction:** amendments are allowed only by way of disclaimer, correction or explanation (Section 59). New matter cannot be added later, so a weak draft often cannot be fully repaired.
- **Opposition and revocation:** insufficient description and unclear claims are grounds for opposition (Section 25) and revocation (Section 64).
- **Weak enforcement:** unclear claims are hard to enforce, and an infringer can easily argue that it falls outside them.

Impact on commercialization

- **Lower value:** a weak patent is worth less when sold or licensed.
- **Fewer licensees:** firms will not pay royalty for rights that are easy to avoid.
- **Investor doubt:** investors check patent strength before funding.
- **Higher cost:** legal disputes and repeated amendments use up money.
- **Lost market position:** competitors can enter the market by working around the claims.

Critical evaluation

Some may argue that an invention's quality matters more than the document. However, legal protection comes only from what is written in the patent. Even a great invention is poorly protected if it is badly drafted. Drafting should also not be too broad, as very wide claims can fail for lack of novelty. Good drafting balances breadth with clarity.

Conclusion: Poor drafting weakens the patent at every stage, from grant to sale. The inventor should use a qualified patent agent and draft clear claims with a full description.

Q23. A company copies a patented water-purifier mechanism and sells it commercially without permission. **(a) Analyze the nature of patent infringement in this situation. (b) Assess the legal remedies available to the patent holder.**

Answer:

(a) Nature of patent infringement

Patent infringement means violating the exclusive rights of the patentee under Section 48. These are the rights to make, use, sell, offer for sale or import the patented product. The Patents Act does not define infringement directly, so it is understood through these rights.

Applying this to the case:

- The company has copied the mechanism, which is **making** without permission.
- It sells the product commercially, which is **selling** without permission, for profit.
- The patent is valid and in force, and no licence exists.

Types of infringement:

- **Direct infringement:** the mechanism itself is made or sold. This is the present case.
- **Literal infringement:** all elements of the claim are copied exactly. This fits a direct copy.
- **Equivalents:** small changes do not avoid liability if the core of the invention is taken.

Possible defences of the company: the patent is invalid (Sections 64 and 107), it used the invention before the priority date, or its use falls under an exception such as research or regulatory approval (Section 107A). None of these appears to apply on the facts, so this is a clear case of infringement.

(b) Legal remedies available

The patent holder can file a suit in a **District Court or higher court** (Section 104). Under Section 108, these remedies are available:

- **Injunction:** a court order stopping the company from making or selling the product. A temporary injunction can be given during the case. This is often the most useful remedy, because it stops the harm quickly.
- **Damages:** money to compensate for the loss suffered.
- **Account of profits:** the company gives up the profits earned from infringement. The holder chooses either damages or an account of profits.
- **Seizure or destruction:** the court may order the infringing goods to be seized, forfeited or destroyed.

Limits: if the company proves it did not know of the patent and had no reason to believe it existed, damages may be refused (Section 111). Patent infringement also has no criminal remedy, so the remedy is civil.

Assessment: the injunction stops the harm, and damages or profits compensate for past loss. Together they give the patent holder effective protection.

Q24. A software company wants to patent a new data-compression algorithm, and a herbal-products firm wants to patent a modified form of a known plant-extract compound. **(a) Analyze the criteria of patentability under the Indian Patents Act, 1970. (b) Evaluate whether each invention is likely to be patentable, with reference to the subject matter excluded from patent protection.**

Answer:

(a) Criteria of patentability

An invention must satisfy all of the following:

- **Novelty:** it must be new and not already known to the public anywhere in the world (Section 2(1)(j)).
- **Inventive step:** it must be a technical advance or have economic significance, and must not be obvious to a person skilled in the field (Section 2(1)(ja)).
- **Industrial applicability:** it must be capable of being made or used in an industry (Section 2(1)(ac)).
- **Patentable subject matter:** it must not fall under the exclusions in Sections 3 and 4.
- **Sufficient disclosure:** the specification must describe the invention fully (Section 10).

(b) Evaluation of each invention

1. Data-compression algorithm: likely not patentable as such

- **Section 3(k)** excludes mathematical methods, business methods, computer programmes per se and algorithms.
- An algorithm by itself is an abstract method, so it is excluded.
- However, if it is claimed with a technical effect, for example a device that really improves hardware or data transmission, it may be allowed. This approach was noted in *Ferid Allani v. Union of India* (Delhi High Court, 2019).
- **Result:** refused if claimed as a pure algorithm, with a chance only if a real technical effect is shown.

2. Modified plant-extract compound: patentable only with proof of better efficacy

- **Section 3(d)** excludes a new form of a known substance unless it shows **significantly enhanced efficacy**. Salts, esters and similar derivatives are treated as the same substance unless they differ significantly in efficacy.
- In *Novartis v. Union of India* (Supreme Court, 2013), the Glivec patent was refused. For medicines, efficacy means therapeutic efficacy.
- **Section 3(c)** excludes the discovery of a naturally occurring substance.
- **Section 3(e)** excludes a mere mixture with only added properties.
- **Section 3(p)** excludes traditional knowledge, which matters for herbal products.
- **Result:** not patentable, unless the firm proves significantly better efficacy with test data.

Conclusion: Both inventions face serious hurdles. Neither is likely to be patentable as simply described. The software company must show a technical effect, and the herbal firm must prove enhanced efficacy.

Q25. A pharmaceutical company holds a patent on a life-saving drug but sells it at a price that most patients cannot afford, and a generic manufacturer applies to produce it. **(a) Explain the grounds and procedure for compulsory licensing. (b) Evaluate how patent law balances the rights of the patentee with public interest.**

Answer:

(a) Compulsory licensing

A **compulsory licence** is permission given by the Controller of Patents to another person to make a patented product **without the patent owner's consent**, on payment of royalty.

Grounds under Section 84: any interested person can apply after **3 years from grant** on any of these grounds:

- The reasonable requirements of the public are not met.
- The invention is not available at a reasonably affordable price.
- The invention is not worked in India.

Procedure:

- **Step 1:** the applicant should first try to get a voluntary licence on reasonable terms, normally for up to 6 months.
- **Step 2:** the applicant files an application with the Controller, using Form 17, along with a statement of the facts.
- **Step 3:** the Controller checks for a prima facie case.
- **Step 4:** if a case exists, the application is notified to the patentee and published, so that opposition can be filed.
- **Step 5:** the Controller hears both sides, considering factors such as the nature of the invention and the applicant's ability to work it.
- **Step 6:** the licence is granted on set terms, such as reasonable royalty. It is normally non-exclusive and non-assignable (Section 90).

Other provisions: Section 92 allows a licence in a national emergency or extreme urgency, and Section 92A allows export of medicines to countries with no manufacturing capacity.

Case example: in *Natco v. Bayer* (2012), India's first compulsory licence was given for the cancer drug Nexavar. Bayer's price was about Rs 2.8 lakh a month, while Natco offered it at about Rs 8,800, with a 6% royalty to Bayer.

Application: the generic manufacturer can apply on the ground of an unaffordable price, once 3 years have passed from grant.

(b) Balance between patentee's rights and public interest

Rights protected for the patentee:

- Exclusive rights for 20 years (Section 48), which reward research costs.
- Reasonable royalty even under a compulsory licence.
- A compulsory licence can be sought only after 3 years, which gives time to earn returns.

Safeguards for the public:

- Section 83 says that patents must benefit the public and not be used only to import goods.
- Compulsory licences make medicines affordable.
- Section 3(d) stops evergreening, that is, extending monopolies through minor changes.
- Section 66 allows revocation if a patent is harmful to the public.
- Section 107A allows limited research and regulatory use.

- Pre-grant and post-grant opposition stop weak patents.

Evaluation: without patents, companies would have less reason to invest in new drugs. Without limits, life-saving drugs would stay out of reach. Critics say that compulsory licences reduce the incentive to innovate, but these licences are rare and still pay royalty.

Conclusion: Indian patent law gives a fair balance. It rewards invention for a limited time, while making sure that public health comes first when needed.